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FEDERAL REGISTER

VOLUME 2 NUMBER 35

Washington, Saturday, February 20, 1937

PRESIDENT OF THE UNITED STATES.

EXECUTIVE ORDER

INCREASING AMOUNTS AVAILABLE FOR PUBLIC PROJECTS UNDER EMERGENCY RELIEF APPROPRIATION ACT OF 1936

By virtue of and pursuant to the authority vested in me under the Emergency Relief Appropriation Act of 1936 (49 Stat. 1608), and in order to effectuate the purposes of the appropriation made by that Act, it is ordered that the amounts specified in the second paragraph of the Act as available for the several classes of public projects therein enumerated, be, and they are hereby, increased proportionately in the aggregate amount of $124,500,000, this being the amount of the unexpended balances of funds heretofore transferred to that appropriation from the funds appropriated and made available by the Emergency Relief Appropriation Act of 1935, so that the amounts available under the Emergency Relief Appropriation Act of 1936, as modified by Executive Orders No. 7469 of October 13, 1936, and No. 7512 of December 16, 1936, and as increased in the amount of $789,000,000 by the First Deficiency Appropriation Act, fiscal year 1937, approved February 9, 1937 (Public No. 4, 75th Cong., 1st Sess.), shall be, for the several classes of public projects enumerated in the said paragraph, as follows:

(a) Highways, roads and streets	$678,165,000
(b) Public buildings	244,410,000
(c) Parks and other recreational facilities, including buildings therein	257,235,000
(d) Public utilities, including sewer systems, water supply and purification, airports, and other transportation facilities	254,970,000
(e) Flood control and other conservation	210,465,000
(f) Assistance for educational, professional, and clerical persons	153,135,000
(g) Women's projects	153,135,000
(h) Miscellaneous work projects	116,925,000
(i) National Youth Administration	116,925,000
(j) Rural rehabilitation, loans, and relief to farmers and livestock growers	153,135,000

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
February 17, 1937.

[No. 7553]

[F. R. 37-495; Filed, February 18, 1937; 3:07 p. m.]

EXECUTIVE ORDER

AMENDMENT OF SECTION 1 OF EXECUTIVE ORDER NO. 7180 OF SEPTEMBER 6, 1935, PRESCRIBING RULES AND REGULATIONS GOVERNING THE MAKING OF LOANS BY THE PUERTO RICO RECONSTRUCTION ADMINISTRATION UNDER THE EMERGENCY RELIEF APPROPRIATION ACT OF 1935

By virtue of and pursuant to the authority vested in me by the Emergency Relief Appropriation Act of 1935, approved April 8, 1935 (49 Stat. 115), I hereby amend section 1 of Executive Order No. 7180 of September 6, 1935, prescribing rules and regulations governing the making of loans by the Puerto Rico Reconstruction Administration under the Emergency Relief Appropriation Act of 1935 (Regulation No. 8), to read as follows:

"Section 1. Loans may be made by the Puerto Rico Reconstruction Administration (a) for the purpose of financing, in whole or in part, the purchase of farm lands and necessary equipment by farmers, farm tenants, croppers, farm laborers, or stockmen, and (b) for such other purposes as may be necessary for rural rehabilitation or relief in stricken agricultural areas."

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
February 17, 1937.

[No. 7554]

[F. R. Doc. 37-496; Filed, February 18, 1937; 3:07 p. m.]

EXECUTIVE ORDER

WITHDRAWAL OF LAND FOR FOREST ADMINISTRATIVE SITE

California

By virtue of and pursuant to the authority vested in me by the act of June 25, 1910, ch. 421, 36 Stat. 847, as amended by the act of August 24, 1912, ch. 369, 37 Stat. 497, it is ordered as follows:

SECTION 1. Executive Order No. 6910 of November 26, 1934, as amended, temporarily withdrawing all public lands in certain States for classification and other purposes, is hereby revoked as to the following-described tract of public land in California:

MOUNT DIABLO MERIDIAN

T. 29 N., R. 2 E., sec. 6, lot 18, 36.20 acres.

SECTION 2. Subject to valid existing rights, the tract of land described in section 1 of this order is hereby temporarily withdrawn from settlement, location, sale or entry, and reserved for use by the Forest Service of the Department of Agriculture as an administrative site in connection with the administration of the Lassen National Forest.

SECTION 3. The withdrawal made by section 2 of this order shall remain in force until revoked by the President or by act of Congress.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
February 17, 1937.

[No. 7555]

[F. R. Doc. 37-497; Filed, February 18, 1937; 3:07 p. m.]

FEDERAL REGISTER

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TABLE OF CONTENTS

	Page
Department of Agriculture:	
Agricultural Adjustment Administration:	
Agricultural conservation program, 1937:	
Northeast region, Bulletin No. 101:	
Connecticut, Supplement (1)	404
Maine, Supplement (1)	405
New Hampshire, Supplement (1)	405
New Jersey, Supplement (1)	405
Pennsylvania, Supplement (1)	406
Vermont, Supplement (1)	406
Federal Trade Commission:	
Order appointing examiner, etc., in matter of:	
Trees, C. E., and Co., Inc.	407
President of the United States:	
Executive Orders:	
Alaska, excluding certain tracts from Tongass National Forest and restoring them to entry	404
California, land withdrawal for forest administrative site	403
Emergency Relief Appropriation Act of 1935, loans by Puerto Rico Reconstruction Administration	403
Emergency Relief Appropriation Act of 1936, increasing amounts available for public projects	403
Securities and Exchange Commission:	
Notice of hearing in the matter of:	
Laclede Power & Light Co.	407
Order for continuance, offering sheet by:	
Manning, R. H., & Co.	408
Suspension orders, etc., offering sheets by:	
Russell, William C.	408
Sory, Arthur	408

EXECUTIVE ORDER

EXCLUDING CERTAIN TRACTS OF LAND FROM TONGASS NATIONAL FOREST AND RESTORING THEM TO ENTRY

Alaska

By virtue of and pursuant to the authority vested in me by the act of June 4, 1897, 30 Stat. 11, 36 (16 U. S. C., sec. 473), and upon the recommendation of the Secretary of Agriculture, it is ordered that the following-described tracts of land in Alaska, occupied as homesites and identified by elimination surveys, plats and field notes of which are on file in the General Land Office, Washington, D. C., be, and they are hereby, excluded from the Tongass National Forest and restored to entry under the applicable public-land laws:

Homesite No. 120, lot "A", Mud Bay group, Tongass Highway, Revillagigedo Island, 5 acres; approximate latitude 55°25′ N., longitude 131°44′30″ W.;

Homesite No. 137, lot "C", Mud Bay group, Tongass Higway, Revillagigedo Island, 4.91 acres; approximate latitude 55°24′15″ N., longitude 131°45′ W.;

Homesite No. 156, Fritz Cove group, Fritz Cove Highway, on Auke Bay, 5 acres; approximate latitude 58°25′29″ N., longitude 134°38′30″ W.;

Homesite No. 227, lot "O", Mud Bay group, Tongass Highway, Revillagigedo Island, 2.56 acres; approximate latitude 55°25′15″ N., longitude 131°46′10″ W.;

Homesite No. 321, lot "S", Wrangell group, Wrangell Highway, Wrangell Island, 3.94 acres; approximate latitude 56°26′ N., longitude 132°22′ W.;

Homesite No. 422, lot "T", Triangle group, Glacier Highway, Auke Lake Truck Trail, in the vicinity of Auke Bay, 3.65 acres; approximate latitude 58°22′50″ N., longitude 134°38′ W.;

Homesite No. 428, lot "B", Herring Bay group, Tongass Highway, on George Inlet, Revillagigedo Island, 4.35 acres; approximate latitude 55°19′30″ N., longitude 131°31′30″ W.;

Homesite No. 429, lot "P", Mud Bay group, Tongass Highway, Revillagigedo Island, 1.85 acres; approximate latitude 55°25′16″ N., longitude 131°46′20″ W.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
February 18, 1937.

[No. 7556]

[F. R. Doc. 37-508; Filed, February 19, 1937; 12:53 p. m.]

DEPARTMENT OF AGRICULTURE.

Agricultural Adjustment Administration.

NER—B-101—Connecticut—Supplement (1)

Issued February 19, 1937

1937 AGRICULTURAL CONSERVATION PROGRAM—NORTHEAST REGION

BULLETIN NO. 101—CONNECTICUT—SUPPLEMENT (1)

Pursuant to the authority vested in the Secretary of Agriculture under section 8 of the Soil Conservation and Domestic Allotment Act, Bulletin 101—Connecticut[1] is hereby amended by the addition of the following provisions.

The practice numbers given in this supplement correspond to the numbers of the soil-building practices set out in Bulletin No. 101—Connecticut, and the matter appearing below under the heading "Description of Practice" is in addition to that prescribed under such heading in Bulletin No. 101—Connecticut.

Practice Number and Description of Practice

LIME

1. Ground limestone is limestone which will analyze at least 80 percent carbonates, 90 percent of which will pass through a 20-mesh sieve and 50 percent of which will pass through a 100-mesh sieve.

Part VI, "Definitions", is amended by adding at the end thereof the following:

As used herein as an adjective the term "approved" means, unless the context otherwise requires, found by the county committee to be recognized, in instructions issued by the State committee, as conforming to good farming practice under the circumstances, based upon (a) recommendations contained in the most recent official reports or bulletins issued by the United States Department of Agriculture, the State Department of Agriculture, the State agricultural experiment station, or the State agricultural college, or (b) finding of facts made by the State committee after a study of the material pertinent to the subject matter.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the city of Washington, District of Columbia, this 19th day of February, 1937.

[SEAL]

H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 37-503; Filed, February 19, 1937; 12:35 p. m.]

[1] 2 F. R. 242.

NER—B-101—Maine—Supplement (1) Issued February 19, 1937

1937 AGRICULTURAL CONSERVATION PROGRAM—NORTHEAST REGION

BULLETIN NO. 101—MAINE—SUPPLEMENT (1)

Pursuant to the authority vested in the Secretary of Agriculture under section 8 of the Soil Conservation and Domestic Allotment Act, Bulletin No. 101—Maine[1] is hereby amended by the addition of the following provisions.

The practice numbers given in this supplement correspond to the numbers of the soil-building practices set out in Bulletin No. 101—Maine, and the matter appearing below under the heading "Description of Practice" is in addition to that prescribed under such heading in Bulletin No. 101—Maine.

Practice Number and Description of Practice

LIMING

1. Ground limestone is limestone which will analyze at least 80 percent carbonates, 90 percent of which will pass through a 20-mesh sieve and 50 percent of which will pass through a 100-mesh sieve.

The equivalent of 100 pounds of ground limestone is 75 pounds of agricultural hydrated lime (land lime) or other approved material.

FERTILIZING CONSERVING CROPS

The limits on the number of pounds of plant food per acre for which payment is allowed are as follows:

	Smallest amount (pounds)	Largest amount (pounds)
When fertilizer is applied as top-dressing on hay land, pasture, or orchard sods:		
Complete fertilizer	57	192
Nitrogen on pasture and orchard sods	16	32
Nitrogen on hay land sods	16	24
Phosphoric acid, with or without manure	40	80
Potash with or without manure	50	80
When fertilizer is applied to land in preparation for new seedings of soil-conserving crops:		
Potash	20	40
Phosphoric acid, when there is no nurse crop, or the nurse crop is not harvested for grain	40	80
Phosphoric acid, when nurse crop is harvested for grain (no payment for first 32 pounds)	40	80
When fertilizer is applied to land in preparation for green-manure crops:		
Phosphoric acid	40	80
Potash	20	40
Complete fertilizer (with nonleguminous crops only)	57	100
When superphosphate is applied to animal manure as reinforcement and preservative	(1)	(1)

[1] Not less than 15 pounds or more than 35 pounds of 20% superphosphate (or its equivalent) per ton of manure.

The manure so treated must be applied so that the application of phosphoric acid in the manure will conform to the requirements outlined under the heading "Fertilizing Conserving Crops."

Part VIII, "Definitions", is amended by adding at the end thereof the following:

As used herein as an adjective the term "approved" means, unless the context otherwise requires, found by the county committee to be recognized, in instructions issued by the State committee, as conforming to good farming practice under the circumstances, based upon (a) recommendations contained in the most recent official reports or bulletins issued by the United States Department of Agriculture, the State Department of Agriculture, the State agricultural experiment station, or the State agricultural college, or (b) finding of facts made by the State committee after a study of the material pertinent to the subject matter.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the city of Washington, District of Columbia, this 19th day of February 1937.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 37-502; Filed, February 19, 1937; 12:35 p. m.]

[1] 2 F. R. 159.

NER—B-101—New Hampshire—Supplement (1)
Issued February 19, 1937

1937 AGRICULTURAL CONSERVATION PROGRAM—NORTHEAST REGION

BULLETIN NO. 101—NEW HAMPSHIRE—SUPPLEMENT (1)

Pursuant to the authority vested in the Secretary of Agriculture under section 8 of the Soil Conservation and Domestic Allotment Act, Bulletin 101—New Hampshire[1] is hereby amended by the addition of the following provisions.

The practice numbers given in this supplement correspond to the numbers of the soil-building practices set out in Bulletin No. 101—New Hampshire, and the matter appearing below, under the heading "Description of Practice", is in addition to that prescribed under such heading in Bulletin No. 101—New Hampshire.

Practice Number and Description of Practice

LIMING

1. 2,000 pounds of ground limestone is the equivalent of 1,500 pounds of hydrated lime, or of other approved material.

Ground limestone is limestone which analyzes 80 percent carbonates, 90 percent of which will pass through a 20-mesh sieve and 50 percent of which will pass through a 100-mesh sieve.

FERTILIZING CONSERVING CROPS

The maximum application of available phosphoric acid or potash for which payment will be made is 100 pounds per acre.

Part V, "Definitions", is amended by adding at the end thereof the following:

As used herein as an adjective the term "approved" means, unless the context otherwise requires, found by the county committee to be recognized, in instructions issued by the State committee, as conforming to good farming practice under the circumstances, based upon (a) recommendations contained in the most recent official reports or bulletins issued by the United States Department of Agriculture, the State Department of Agriculture, the State agricultural experiment station, or the State agricultural college, or (b) finding of facts made by the State committee after a study of the material pertinent to the subject matter.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the city of Washington, District of Columbia, this 19th day of February, 1937.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 37-501; Filed, February 19, 1937; 12:35 p. m.]

NER—B-101—New Jersey—Supplement (1)
Issued—February 19, 1937

1937 AGRICULTURAL CONSERVATION PROGRAM—NORTHEAST REGION

BULLETIN NO. 101—NEW JERSEY—SUPPLEMENT (1)

Pursuant to the authority vested in the Secretary of Agriculture under section 8 of the Soil Conservation and Domestic Allotment Act, Bulletin 101—New Jersey[2] is hereby amended by the addition of the following provisions.

The practice numbers given in this supplement correspond to the numbers of the soil-building practices set out in Bulletin No. 101—New Jersey, and the matter appearing below, under the heading "Description of Practice", is in addition to that prescribed under such heading in Bulletin No. 101—New Jersey.

[1] 2 F. R. 249.
[2] 2 F. R. 237.

Practice Number and Description of Practice

LIMING

9. The equivalent of 2,000 pounds of ground limestone is either 2,000 pounds of ground oyster shell or 1,400 pounds of hydrated lime, or other approved material.

Ground limestone is limestone which will analyze at least 80 percent carbonates, 90 percent of which will pass through a 20 mesh sieve and 50 percent of which will pass through a 100 mesh sieve.

FERTILIZING CONSERVING CROPS

10. Payment will be limited to applications of from 16 to 96 pounds of available phosphoric acid per acre.

11. Payment will be limited to applications of from 7½ to 75 pounds of available potash per acre.

12. Payment will be limited to applications of not more than 24 pounds of available nitrogen per acre to hayland and not more than 32 pounds of available nitrogen per acre for any other approved use.

Part V, "Definitions", is amended by adding at the end thereof the following:

As used herein as an adjective the term "approved" means, unless the context otherwise requires, found by the county committee to be recognized, in instructions issued by the State committee, as conforming to good farming practice under the circumstances, based upon (a) recommendations contained in the most recent official reports of bulletins issued by the United States Department of Agriculture, the State Department of Agriculture, the State agricultural experiment station, or the State agricultural college, or (b) finding of facts made by the State committee after a study of the material pertinent to the subject matter.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the city of Washington, District of Columbia, this 19th day of February 1937.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 37-500; Filed, February 19, 1937; 12:34 p. m.]

NER—B-101—Pennsylvania—Supplement (1)
Issued February 19, 1937

1937 AGRICULTURAL CONSERVATION PROGRAM—NORTHEAST REGION

BULLETIN NO. 101—PENNSYLVANIA—SUPPLEMENT (1)

Pursuant to the authority vested in the Secretary of Agriculture under section 8 of the Soil Conservation and Domestic Allotment Act, Bulletin No. 101—Pennsylvania [1] is hereby amended as follows:

Part IX, "Definitions", is amended by adding at the end thereof the following:

As used herein as an adjective the term "approved" means, unless the context otherwise requires, found by the county committee to be recognized as conforming to good farming practice under the circumstances, in instructions issued by the State committee, based upon (a) recommendations contained in the most recent official reports or bulletins issued by the United States Department of Agriculture, the State Department of Agriculture, the State agricultural experiment station, or the State agriculture college, or (b) finding of facts made by the State committee after a study of the material pertinent to the subject matter.

Footnote number 2 is amended to read as follows:

[2] Pulverized limestone is limestone which will analyze at least 80 percent carbonates, 90 percent of which will pass through a 20-mesh sieve and 50 percent of which will pass through a 100-mesh sieve.

In testimony whereof, H. A. Wallace, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the city of Washington, District of Columbia, this 19th day of February, 1937.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 37-499; Filed, February 19, 1937; 12:34 p. m.]

[1] 2 F. R. 250.

NER—B-101—Vermont—Supplement (1) Issued February 19, 1937

1937 AGRICULTURAL CONSERVATION PROGRAM—NORTHEAST REGION

BULLETIN NO. 101—VERMONT—SUPPLEMENT (1)

Pursuant to the authority vested in the Secretary of Agriculture under section 8 of the Soil Conservation and Domestic Allotment Act, Bulletin No. 101—Vermont [1] is hereby amended by the addition of the following provisions.

The practice numbers given in this supplement correspond to the numbers in Bulletin No. 101—Vermont, and the matter appearing below under the heading "Description of Practice" is in addition to that prescribed under such heading in Bulletin No. 101—Vermont.

Practice Number and Description of Practice

LIMING

1. Ground limestone is limestone which will analyze at least 80 percent carbonates, 90 percent of which will pass through a 20-mesh sieve and 50 percent of which will pass through a 100-mesh sieve.

Approved equivalents of ground limestone are given below:

Ground limestone (pounds)	Hydrated lime (pounds)	Quick lime (pounds)	Waste lime (pounds) [1]	Wet marl (pounds)	Wood ashes (pounds) [1]
1,000	750	550	1,000	1,400	1,500
2,000	1,500	1,100	2,000	2,800	3,000
3,000	2,250	1,650	3,000	4,200	4,500
4,000	3,000	2,200	4,000	5,600	6,000
5,000	3,750	2,750	5,000	7,000	7,500
6,000	4,500	3,300	6,000	8,400	9,000

[1] If materials are wet add 40% to figures.

FERTILIZING CONSERVING CROPS

The rates per acre for applying nitrogen, phosphoric acid, and potash in combination for top-dressing various crops on various types of soil, or for application in preparation for seeding grasses or legumes, are given below:

(a) On Clay Loam, Silt Loam, or Loam

Crop	Pounds fertilizer per acre	Percent nitrogen	Percent phosphoric acid	Percent potash
Hay	300-400	4-6	8-20	6-10
Permanent pasture	400-500	4-6	8-20	6-10
Green manure	300-400	4-6	8-20	6-10

(b) On Sands or Sandy Loam

Hay	400-500	4-6	8-20	10-20
Permanent pasture	500-525	4-6	8-20	10-20
Green manure	400-500	4-6	8-20	10-20

2. When used to preserve and reinforce farm manure, not less than one pound of 16% or 20% superphosphate per mature cow per day shall be used in the gutter.

The minimum rates of application of phosphoric acid for various crops on various types of soil, when used at the time of seeding down or for top-dressing, are given below:

(a) On Clay Loam, Silt Loam, or Loam

Crop	Pounds of 16% superphosphate per acre	Crop	Pounds of 16% superphosphate per acre
Alfalfa	400	Permanent pasture (seeding down)	300
Clover and timothy	300	Green manure	300
Permanent pasture (top-dressing)	600		

[1] 2 F. R. 79.

(b) On Sands or Sandy Loam

Crop	Pounds of 16% superphosphate per acre	Crop	Pounds of 16% superphosphate per acre
Alfalfa	500	Permanent pasture (seeding down)	400
Clover and timothy	400	Green manure	400
Permanent pasture (top-dressing)	600		

3. The minimum rates of application of potash to various crops on various soils, when used at the time of seeding down or as top-dressing, are given below:

(a) On Clay Loam, Silt Loam, or Loam

Crop	Pounds of 50% potash fertilizer per acre	Crop	Pounds of 50% potash fertilizer per acre
Alfalfa	100	Permanent pasture (seeding down)	100
Clover and timothy	75	Green manure	75
Permanent pasture (top-dressing)	100		

(b) On Sands or Sandy Loam

Crop	Pounds of 50% potash fertilizer per acre	Crop	Pounds of 50% potash fertilizer per acre
Alfalfa	150	Permanent pasture (seeding down)	150
Clover and timothy	100	Green manure	100
Permanent pasture (top-dressed)	150		

4. The minimum rates of application for top-dressing various crops on various soils are given below:

(a) Applying Nitrogen Alone

Crops	Pounds of 16% nitrogen fertilizer per acre	Crops	Pounds of 16% nitrogen fertilizer per acre
Alfalfa	None	Permanent pasture (for early grazing)	200
Clover and timothy	None	Green manure	200
Grass meadows	100		
Grass pastures	200		

Part V, "Definitions", is amended by adding at the end thereof the following:

As used herein as an adjective the term "approved" means, unless the context otherwise requires, found by the county committee to be recognized, in instructions issued by the State committee, as conforming to good farming practice under the circumstances, based upon (a) recommendations contained in the most recent official reports or bulletins issued by the United States Department of Agriculture, the State Department of Agriculture, the State agricultural experiment station, or the State agricultural college, or (b) finding of facts made by the State committee after a study of the material pertinent to the subject matter.

In testimony whereof, H. A. WALLACE, Secretary of Agriculture, has hereunto set his hand and caused the official seal of the Department of Agriculture to be affixed in the City of Washington, District of Columbia, this 19th day of February, 1937.

[SEAL] H. A. WALLACE,
Secretary of Agriculture.

[F. R. Doc. 37-498; Filed, February 19, 1937; 12:34 p. m.]

FEDERAL TRADE COMMISSION.

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 16th day of February, A. D. 1937.

Commissioners: William A. Ayres, Chairman, Garland S. Ferguson, Jr., Charles H. March, Ewin L. Davis, Robert E. Freer.

[Docket No. 2622]

IN THE MATTER OF C. E. TREES AND COMPANY, INC., A CORPORATION

ORDER APPOINTING EXAMINER AND FIXING TIME AND PLACE FOR TAKING TESTIMONY

This matter being at issue and ready for the taking of testimony, and pursuant to authority vested in the Federal Trade Commission, under an Act of Congress (38 Stat. 717; 15 U. S. C. A., Section 41),

It is ordered that John J. Keenan, an examiner of this Commission, be and he hereby is designated and appointed to take testimony and receive evidence in this proceeding and to perform all other duties authorized by law;

It is further ordered that the taking of testimony in this proceeding begin on Friday, February 26, 1937, at ten o'clock in the forenoon of that day (eastern standard time), in room 921, Federal Building, Detroit, Michigan.

Upon completion of testimony for the Federal Trade Commission, the examiner is directed to proceed immediately to take testimony and evidence on behalf of the respondent. The examiner will then close the case and make his report.

By the Commission:

[SEAL] OTIS B. JOHNSON, *Secretary.*

[F. R. Doc. 37-494; Filed, February 18, 1937; 2:02 p. m.]

SECURITIES AND EXCHANGE COMMISSION.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 18th day of February, A. D. 1937.

[File No. 47-7]

IN THE MATTER OF LACLEDE POWER & LIGHT COMPANY

NOTICE OF AND ORDER FOR HEARING

An application having been duly filed with this Commission, by Laclede Power & Light Company, a subsidiary company of Utilities Power & Light Corporation, a registered holding company, pursuant to Section 10 (a) (2) of the Public Utility Holding Company Act of 1935, for approval of the acquisition by applicant of a leasehold interest in certain utility assets, to-wit: the electric generating plant and properties pertaining thereto located at Granite City, Illinois, now held by George B. Evans as Trustee of St. Louis Gas & Coke Corporation, and presently to be transferred to Granite City Generating Company, a corporation to be organized, and by such corporation leased to applicant;

It is ordered that a hearing on such matter be held on March 4, 1937, at 2:30 o'clock in the afternoon of that day at Room 1101, Securities and Exchange Building, 1778 Pennsylvania Avenue NW., Washington, D. C.; and

Notice of such hearing is hereby given to said party and to any interested State, State commission, State securities commission, municipality, and any other political subdivision of a State, and to any representative of interested consumers or security holders, and any other person whose participation in such proceeding may be in the public interest or for the protection of investors or consumers. It is

requested that any person desiring to be heard or to be admitted as a party to such proceeding shall file a notice to that effect with the Commission on or before February 27, 1937.

It is further ordered that Charles S. Lobingier, an officer of the Commission, be and he hereby is designated to preside at such hearing, and authorized to adjourn said hearing from time to time, to administer oaths and affirmations, subpena witnesses, compel their attendance, take evidence, and require the production of any books, papers, correspondence, memoranda, contracts, agreements, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law.

Upon the completion of the taking of testimony in this matter, the officer conducting said hearing is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 37-504; Filed, February 19, 1937; 12:42 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 17th day of February, A. D., 1937.

IN THE MATTER OF AN OFFERING SHEET OF A WORKING INTEREST IN THE MANNING-BRYSON-YORK ET AL. FARM, FILED ON JANUARY 28, 1937, BY R. H. MANNING & COMPANY, RESPONDENT

ORDER FOR CONTINUANCE

The Securities and Exchange Commission, having been requested by its counsel for a continuance of the hearing in the above entitled matter,[1] which was last set to be heard at 10:00 o'clock in the forenoon on the 18th day of February, 1937, at the office of the Securities and Exchange Commission, 18th Street and Pennsylvania Avenue, Washington, D. C., and it appearing proper to grant the request;

It is ordered, pursuant to Rule VI of the Commission's Rules of Practice under the Securities Act of 1933, as amended, that the said hearing be continued to 10:00 o'clock in the forenoon on the 5th day of March, 1937, at the same place and before the same trial examiner.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 37-506; Filed, February 19, 1937; 12:42 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 18th day of February A. D. 1937.

IN THE MATTER OF AN OFFERING SHEET OF AN OVER-RIDING ROYALTY INTEREST IN THE TEXAS-CALIFORNIA-WILSON CREEK DOME, FILED ON FEBRUARY 12, 1937, BY WILLIAM C. RUSSELL, RESPONDENT

SUSPENSION ORDER, ORDER FOR HEARING (UNDER RULE 340 (A)), AND ORDER DESIGNATING TRIAL EXAMINER

The Securities and Exchange Commission, having reasonable grounds to believe, and therefore alleging, that the offering sheet described in the title hereof and filed by the respondent named therein is incomplete or inaccurate in the following material respects, to wit:

(1) In that Item 11, Division II, omits exact location of proposed well;

(2) In that Item 13, Division II, omits the date the first well is to be commenced;

(3) In that Exhibit A fails to comply with the requirements of the regulations in that it does not show a legend of symbols; is not dated; the scale is not given, and the location of the proposed well is not shown;

It is ordered, pursuant to Rule 340 (a) of the Commission's General Rules and Regulations under the Securities Act of 1933, as amended, that the effectiveness of the filing of said offering sheet be, and hereby is, suspended until the 13th day of March, 1937; that an opportunity for hearing be given to the said respondent for the purpose of determining the material completeness or accuracy of the said offering sheet in the respects in which it is herein alleged to be incomplete or inaccurate, and whether the said order of suspension shall be revoked or continued; and

It is further ordered that Charles S. Lobingier, an officer of the Commission be, and hereby is, designated as trial examiner to preside at such hearing, to continue or adjourn the said hearing from time to time, to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, consider any amendments to said offering sheet as may be filed prior to the conclusion of the hearing, and require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law; and

It is further ordered that the taking of testimony in this proceeding commence on the 4th day of March, 1937, at 2:00 o'clock in the afternoon, at the office of the Securities and Exchange Commission, 18th Street and Pennsylvania Avenue, Washington, D. C., and continue thereafter at such times and places as said examiner may designate.

Upon the completion of testimony in this matter the examiner is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 37-505; Filed, February 19, 1937; 12:42 p. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 17th day of February, A. D., 1937.

IN THE MATTER OF AN OFFERING SHEET OF A ROYALTY INTEREST IN THE GULF-GOLDSMITH FARM, FILED ON FEBRUARY 11, 1937, BY ARTHUR SORY, RESPONDENT

SUSPENSION ORDER, ORDER FOR HEARING (UNDER RULE 340 (A)), AND ORDER DESIGNATING TRIAL EXAMINER

The Securities and Exchange Commission, having reasonable grounds to believe, and therefore alleging, that the offering sheet described in the title hereof and filed by the respondent named therein is incomplete or inaccurate in the following material respects, to wit:

(1) In that in Division III, Item 3, it is not fully explained how the estimate of approximately 8,960 productive acres was determined;

(2) In that in Division III, Item 3, it is not fully explained how the "established water table" was determined;

(3) In that in Division III, Item 3, the "data available at this time", on which there is based a maximum of 145 feet from the highest pay datum to the water estimated at minus 1066 are not fully explained;

(4) In that in Division III, Item 3, it has not been fully shown that the use of an average yield per acre of 20,000 barrels for Hobbs is proper;

It is ordered, pursuant to Rule 340 (a) of the Commission's General Rules and Regulations under the Securities Act of 1933, as amended, that the effectiveness of the filing of said offering sheet be, and hereby is, suspended until the

[1] 2 F. R. 305.

18th day of March, 1937, that an opportunity for hearing be given to the said respondent for the purpose of determining the material completeness or accuracy of the said offering sheet in the respects in which it is herein alleged to be incomplete or inaccurate, and whether the said order of suspension shall be revoked or continued; and

It is further ordered that Charles S. Lobingier, an officer of the Commission be, and hereby is, designated as trial examiner to preside at such hearing, to continue or adjourn the said hearing from time to time, to administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, consider any amendments to said offering sheet as may be filed prior to the conclusion of the hearing, and require the production of any books, papers, correspondence, memoranda, or other records deemed relevant or material to the inquiry, and to perform all other duties in connection therewith authorized by law; and

It is further ordered that the taking of testimony in this proceeding commence on the 3rd day of March, 1937, at 2:00 o'clock in the afternoon, at the office of the Securities and Exchange Commission, 18th Street and Pennsylvania Avenue, Washington, D. C., and continue thereafter at such times and places as said examiner may designate.

Upon the completion of testimony in this matter the examiner is directed to close the hearing and make his report to the Commission.

By the Commission.

[SEAL] FRANCIS P. BRASSOR, *Secretary.*

[F. R. Doc. 37-507; Filed, February 19, 1937; 12:42 p. m.]